

		9:00 a.m. in Department C21, to be heard concurrent with the OSC. Mr. Ling, Esq. shall serve notice of this Order.
51	<i>Lee v. Hu</i>	Plaintiffs Ton Lee’s and Virra Lee’s motion to set aside the judgment entered against them after they failed to oppose Defendants’ motion for summary judgment is DENIED. Code Civ. Proc. § 473(b) permits a court to grant relief from a judgment, dismissal, order or other proceeding taken against a party on the grounds of “mistake, inadvertence, surprise or excusable neglect.” Code Civ. Proc. § 473(b) provides for two types of relief. (Leader v. Health Industries of Am., Inc. (2001) 89 Cal. App. 4th 603, 615.) A court may grant discretionary relief upon the moving party’s showing of mistake, inadvertence, surprise or excusable neglect. (Id. at 615-616.) A court must grant mandatory relief upon a showing by an attorney declaration of mistake, inadvertence, surprise or neglect. (Id. at 616.) Mandatory relief is not available to Plaintiffs here. The mandatory portion of this statute provides that the Court shall “vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney’s client...” (Emphasis added.) The Court is not compelled per the statute to set aside a summary judgment that is neither a “default” or a “default judgment or dismissal.” (See Las Vegas Land & Development Co., LLC v. Wilkie Way, LLC (2013) 219 Cal.App.4th 1086, 1091; Shayan v. Spine Care & Orthopedic Physicians (2020) 44 Cal.App.5th 167, 170; English v. IKON

Business Solutions, Inc. (2001) 94 Cal.App.4th 130, 138; Henderson v. Pacific Gas & Electric Co. (2010) 187 Cal.App.4th 215, 228–229.)

Therefore, relief is discretionary.

Defendants' motion for summary judgment was heard and granted on 1/16/26. Plaintiffs now seek relief from the judgment that was subsequently entered against them on 1/28/26 on grounds of attorney mistake and excusable neglect.

Defendants filed and served their motion for summary judgment on 9/25/25. (ROA 39.) The original hearing date on the MSJ was 12/19/25. Pursuant to the parties' stipulation, the hearing was continued to 1/16/26, and the trial date was continued to 2/23/26. (ROA 51.) Plaintiffs were ordered to give notice of the Court order dated 12/17/25.

Plaintiffs' counsel states that during this time, he was preoccupied because he was moving his parents into an assisted living facility. In addition, on 12/17/25, counsel states that he learned that his brother-in-law had passed away. (Elliott Decl., ¶ 9.) Due to these circumstances, counsel claims that he inadvertently neglected to calendar the continued hearing date for the MSJ. (Elliott Decl., ¶ 9.)

Plaintiffs' counsel attempts to impart some of the blame on Defense counsel, stating that they never referenced the hearing date for the MSJ while they were discussing mediation. But it was not Defense counsel's obligation to remind Plaintiffs' counsel of the hearing date. Additionally, Plaintiffs' counsel suggests that

	Defense counsel agreed that the mediation would occur prior to the MSJ hearing. But this is not supported by counsels' emails. The Court does not find that Plaintiffs' counsel's failure to calendar the MSJ hearing was the result of excusable mistake or neglect. "In determining whether the attorney's mistake or inadvertence was excusable, 'the court inquires whether a reasonably prudent person under the same or similar circumstances might have made the same error.'" (Zamora v. Clayborn Contracting Group, Inc. (2002) 28 Cal.4th 249, 258 [citing Bettencourt v. Los Rios Community College Dist. (1986) 42 Cal.3d 270, 276].) "Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not therefore excusable." (Id.) Plaintiffs' counsel initially declares that "I neglected to calendar those new dates due to the news about my brother-in-law plus the ongoing distractions resulting from moving my parents into an assisted living facility." (Elliott Decl. ¶ 9.) On 12/17/25, Plaintiffs' counsel (as well as his co-counsel, Mr. Cascali) were copied on an email from a paralegal in his own firm stating that the new date of the MSJ hearing was 1/16/26, attaching the stipulation waiting signature from the Court. (Elliott Decl., Ex. 7.) A reasonably prudent person under similar (albeit sympathetic) circumstances would not have made the same error given that (1) a stipulation was drafted in part by Plaintiffs' counsel regarding the subject summary judgment hearing date, (2) counsel was copied on
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